

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO H.B. 2749
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 6, Arizona Revised Statutes, is
3 amended by adding section 13-604.01, to read:

4 13-604.01. Class 4, 5 or 6 felony; misdemeanor designation;
5 definition

6 A. NOTWITHSTANDING ANY OTHER PROVISION OF THIS TITLE, IF A PERSON
7 IS CONVICTED OF A CLASS 4, 5 OR 6 FELONY NOT INVOLVING A DANGEROUS
8 OFFENSE, THE COURT MAY ENTER JUDGMENT OF CONVICTION FOR A CLASS 1
9 MISDEMEANOR IF THE COURT DETERMINES ALL OF THE FOLLOWING:

10 1. THE PERSON HAS NOT PREVIOUSLY BEEN CONVICTED OF ANY FELONY
11 OFFENSE.

12 2. THE OFFENSE DID NOT INVOLVE A VICTIM.

13 3. THE PERSON HAS COMPLETED ALL OF THE TERMS AND CONDITIONS IMPOSED
14 BY THE COURT FOR THE CONVICTION, INCLUDING FULL PAYMENT OF ALL MONETARY
15 OBLIGATIONS.

16 4. AT LEAST FIVE YEARS HAVE PASSED SINCE THE [PERSON WAS CONVICTED]
17 [COMPLETION OF THE PERSON'S SENTENCE], AND THE PERSON HAS NOT BEEN
18 CONVICTED OF A SUBSEQUENT MISDEMEANOR OFFENSE INVOLVING A VICTIM OR A
19 SUBSEQUENT FELONY OFFENSE DURING THAT TIME.

1 5. ENTERING THE JUDGMENT OF CONVICTION FOR A CLASS 1 MISDEMEANOR IS
2 IN THE INTEREST OF JUSTICE.

3 [B. THIS SECTION DOES NOT APPLY TO A PERSON WHO IS CONVICTED OF A
4 VIOLATION OF SECTION 13-2910, 13-3102 OR 13-3821.]

5 ~~[B.]~~ [C.] FOR THE PURPOSES OF THIS SECTION, "VICTIM" HAS THE SAME
6 MEANING PRESCRIBED IN SECTION 13-4401.

7 Enroll and engross to conform

8 Amend title to conform

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